ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	155th Commission Meeting
DATE:	13 December, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS *The HRO apprised the Commission on 126th HRC meeting which included:* - *joining of office by an intern from the JSW Law School, on a voluntary basis, with effect from 12 December 2023;* - *approval to relieve Chimi Dema with effect from 1 February 2024, as also recommended of the Department;* - *approval of Kinzang Sherab's application for resignation; Tshering Dorji's contract termination and Tashi Dema's study leave;* - *regretting UNITAR online training considering costs effectiveness for online courses;* - *share free online trainings offered by apolitical for self-directed learning;* - *nominations for IMF SARTTAC training RMA from LD, DARe and ADMD;* *HRS also updated on discussion with RCSC on securing Kinzang Choden's position.*	**Noted the decisions of the HRC.** **Further, the Commission directed HRC to expedite preparation and commissioning of transfers to/for ROs, with consistent discussions and reminders.** **HRS was also directed to review and update the Commission on Kezang Tshering's pending application for resignation.**
2	Apprise monthly update on the Escrow Account – EMD, DoPS *The EMD apprised that the opening balance was Nu. 19,641,204.01 (as of 1st November). To this, with total credit of Nu. 1,151,105.52 and payment of Nu. 287,952.00, the closing balance was Nu. 20,504,357.53 as of end of November, 2023.*	**The Commission noted the update.**

3	Apprise revised media engagement framework of ACC and OAG – DoI, LD & PPD *To be responsive to the media, also upholding the existing understanding with the OAG, minor revision in the media engagement framework was proposed. The proposed draft is attached herewith.*	**The specific comments on the proposed revision were as follows:** - **The sharing of information by the ACC with media, during the course of investigation, to be handled very carefully with specific focus on operational information only;** - **For cases under OAG's review, to propose for ACC to review the draft before they share with media, in keeping with the need to protect confidentiality and integrity of the referrals.** - **The purpose of the framework to include the need for both the institutions to ensure that the disclosure of any information serves its intended purpose of transparency without undermining or negatively impacting the respective roles and reputations.** **The Commission directed LD to defer finalization of the revised framework with the OAG until the new Attorney General (AG) joins the office. In the meantime, LD to discuss the draft at the working level.** **Further, directed LD and DoI to plan the onboarding of the new AG on ACC's roles and functions.**
4	Present implementation status of the Commission Decisions – PPD *The Commission reviewed the status of the decisions for 132 – 137 Commission meetings.*	**The Commission noted the updates and further directed the following:** - ***132nd meeting*: To facilitate ROs to take opportunity of the Dzongkhag Tshogdues (DTs) for awareness creation, DoPE to prepare and share standard presentation templates and conduct ToT to the ROs.** - ***133rd meeting*: Directed PPD to include 'roll-call of honor' in the next QSM also. Further, SS to analyze the work hours of the staff and apprise the same to the Commission to recognize and appreciate those working overtime/extra hours.** - ***135th meeting*: Directed all Department and Divisions, including the PPD, to comply with the TAT for drafting the minutes of meetings.** **The Commission directed PPD to carefully revisit the categorization of the decisions of the Commission meetings, specifically those decisions that are strategic and operational**

		in nature. **Further, PPD to review all the pending decisions since the 1st Commission meeting and apprise the same.**
5	Any other: - Follow-up of 152nd Commission meeting on review of Regional Offices – PPD *As per the Commission directives, PPD proposed change of jurisdictions for the ROs.*	**The Commission endorsed the revision in jurisdictions of the ROs, post pandemic as well as adapting with the change in the socio-economic environment (including the City in Gelephu). Further, the categorization of the jurisdictions took the number of cases and geographic territory into consideration.** **1. Thimphu Head Office to cover the following Dzongkhags:** **i. Thimphu;** **ii. Paro;** **iii. Tsirang; and** **iv. Sarpang** **2. Phuentsholing Regional Office to cover:** **i. Chhukha;** **ii. Samtse;** **iii. Haa; and** **iv. Dagana** **3. Trashigang Regional Office to cover:** **i. Trashigang;** **ii. Tashi Yangtse;** **iii. Lhuentse;** **iv. Mongar;** **v. Pema Gatshel; and** **vi. Samdrup Jongkhar** **4. Bumthang Regional Office to cover:** **i. Bumthang;** **ii. Trongsa;** **iii. Zhemgang;** **iv. Wangdue Phodrang;** **v. Punakha; and** **vi. Gasa** **The Commission directed all the officials from the Head Office to make a courtesy call to the respective Heads of the ROs, when visiting their jurisdictions, unless the nature of task/function dictates/requires otherwise. Such courtesy call to be made in-person if in the same Dzongkhag, if not to inform through call.**
	- Others:	- **The Commission directed the Endowment Fund Management Committee to present an update on the fund.** - **During the MTR of the APA, PPD and DoI to review number of cases (at least**

		three in a FY) to be completed by a team, given the TAT for investigations substantially improved. Along this line, directed PPD to prepare half-yearly report of the ACC's performance based on the content of the Annual Report. - **Since the DRC of MoF is working on strengthening its systems and processes, the Commission decided to conduct session to DRC, emphasising on systemic recommendations. To this, directed LD, DoI, DARe, DoPE and PPD to prepare and conduct presentation before end of early January 2024.**

Commissioner	*-Out of Station-* **Commissioner**	**Chairperson**

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